

22STCV15148 22STCV15148

County: los-angeles

Division: Civil Law and Motion

Department: 415

Hearing date: 2026-09-10

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Case Number: 22STCV15148 Hearing Date: September 10, 2026 Dept: 415

Tentative Ruling

Judge Rolf M. Treu, Department 415

HEARING

DATE: September

10, 2026 TRIAL

DATE: March 9, 2027

CASE: Laurel Estate, LLC v. Waterproofing
Systems Corp.

CASE

NO.: 22STCV15148

MOTION TO

COMPEL DISCOVERY RESPONSES

MOVING PARTY/PARTIES: Plaintiff Laurel Estate, LLC

RESPONDING PARTY/PARTIES: None

PROOF OF SERVICE:

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Correct address: Yes.

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Served by electronically on March
23, 2026 for a hearing date of September 10, 2026.

CASE HISTORY:

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May 6, 2022: Complaint filed.

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December 18, 2024: Matter deemed
complex and Case Management Order entered.

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March 11, 2026: Amendment to Case
Management Order entered.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff

Laurel Estate, LLC ("Plaintiff") moves to compel Defendant and Cross-Defendant
Moore Foundations, Inc. ("Defendant") to comply with the Case Management Order
that this Court entered on December 18, 2024.
Defendant has not opposed the motion.

TENTATIVE RULING:

Plaintiff's

motion to compel discovery responses is GRANTED as to Defendant's responses to the
document production called for in Exhibit A to the Case Management Order, responses
to the Special Interrogatories set forth in Exhibit C to the Case Management
Order, and the Statement of Work called for in Exhibit D to the Case Management
Order.

Moving

party to give notice.

DISCUSSION:

The December 18, 2024 Case

Management Order obligates the parties to provide certain discovery responses. Specifically, Plaintiff contends that Defendant failed to provide: documents in response to the document production called for in Exhibit A to the Case Management Order; responses to the Special Interrogatories set forth in Exhibit C to the Case Management Order; a Statement of Work called for in Exhibit D to the Case Management Order; and a completed Insurance Questionnaire as called for in Exhibit H to the Case Management Order. (Notice of Motion, p. 2.) Per the Case Management Order, responses to the Statement of Work are deemed Special Interrogatories. However, the Case Management Order does not classify the Insurance Questionnaire as a discovery response. Accordingly, the Court cannot compel Defendant to respond to the Insurance Questionnaire via discovery motion. As Plaintiff cites no authority in the notice of motion under which the Court could compel Defendant to respond to the Insurance Questionnaire, the Court cannot grant that relief. (See Code Civ. Proc., § 1010; Cal. Rules of Court, rule 3.1110, subd. (a); *People v. American Sur. Ins. Co.* (1999) 75 Cal.App.4th 719, 726.)

Per the Case Management Order, Defendant's responses to the document production called for in Exhibit A to the Case Management Order, responses to the Special Interrogatories set forth in Exhibit C to the Case Management Order; and the Statement of Work called for in Exhibit D to the Case Management Order were due within 30 days of entry of the order. To date, Defendant has not served responses. Accordingly, Defendant is to serve responses to the document production called for in Exhibit A to the Case Management Order, responses to the Special Interrogatories set forth in Exhibit C to the Case Management Order; and the Statement of Work called for in Exhibit D to the Case Management Order within 30 days of service of this order.

Plaintiff requests sanctions in connection with the motion. The Court concludes that Defendant's failure to serve responses to the discovery is an abuse of the discovery process, and awards sanctions. The Court imposes sanctions against Defendant and its counsel of record, Sellar Hazard & Lucia, in the amount of \$1,860, which represents two hours of attorney time to prepare the motions and attend the hearing at \$900 per hour, plus the filing fee. Defendant and its counsel of record, Stellar Hazard & Lucia, jointly and severally, are to pay sanctions in the amount of \$1,860 to Plaintiff, by and through counsel, within 30 days of notice of this order.

Moving
party to give notice.

IT
IS SO ORDERED.

Dated: September 10, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept415@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.